

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DOMINICK MURPHY,

Respondent

) Case Number: FCS-13-349074

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), REUNIFICATION THERAPY, TIER 2 MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent Dominick Eugene Murphy (Father) and Other Parent Moneesha Sealey Evans (Mother). There is one minor child subject to this proceeding: Lyriq Genesis Murphy (DOB: 11/16/12).
- 2) On May 8, 2026, Father filed an ex parte Request for Order seeking modification of child custody and visitation. Father requests orders for sole legal and sole physical custody and suspension of Mother's parenting time. In addition, Father requests reunification therapy and a referral to Tier II interview of the minor child.
- 3) On June 5, 2026, Mother filed a Responsive Declaration to Father's Request for Order, which has been read and considered by the Court. Mother requests sole legal and sole physical custody of the minor child with parenting time to Father every other weekend and during school breaks. Mother asks the Court to deny Father's requests for reunification therapy a Tier II interview of the minor child.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) Father's request for sole legal and sole physical custody of the minor child is DENIED.
- 7 3) Father's request to suspend Mother's parenting time is DENIED.
- 8 4) Father's request for reunification therapy is DENIED as Courts are no longer permitted to order
9 reunification therapy.
- 10 5) Father's request for a Tier II interview if the minor child is DENIED.
- 11 6) The Court declines to make any modification of the existing orders; all prior orders shall remain
12 in full force and effect.
- 13 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AUDREY ELIZABETH ROBERTS,

Petitioner

VS.

JUSTIN JOSEPH SALINAS,

Respondent

) Case Number: FMS-25-387596

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Audrey Elizabeth Roberts (Mother) and Respondent Justin Joseph Salinas (Father). They share one minor child: Roxanne Salinas (DOB: 11/04/21).
- 2) On May 4, 2026, Mother filed an ex parte Request for Order seeking modification of the existing child custody and visitation (i.e., parenting time) orders. Mother alleges Father was arrested on multiple firearms violations, including negligent discharge of a firearm. Mother requests emergency orders for sole legal and sole physical custody and temporary suspension of Father's visitation, alleging visitation would be detrimental to the child's wellbeing.
- 3) On May 18, 2026, the Court conducted a Readiness hearing. The Court referred the parties to Family Court Services (FCS) Mediation on June 12, 2026 and set a return hearing for June 25, 2026 at 9:00 a.m., in Department 403.
- 4) As of June 20, 2026, Father has not filed a Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother's unopposed request for sole legal and sole physical custody of the minor child is GRANTED. Effective immediately, Mother shall have sole legal and sole physical custody of Roxanne Salinas (DOB: 11/04/21).
- 3) Father's visitation is suspended and shall continue to be suspended until further order of the Court. Should Father wish to have his parenting time reinstated, he may file a Request for Order explaining to the Court why it is in the child's best interest.
- 4) All prior orders not in conflict with the orders made herein shall remain in full force and effect.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HENRY XING NING WU,

Petitioner

VS.

JUAN ZHANG,

Respondent

) Case Number: FMS-26-387624

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: QUASH SERVICE OF SUMMONS, ETC. (SPECIAL APPEARANCE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Henry Xing Ning Wu (Father) and Respondent Juan Zhang (Mother).
- 2) They share one minor child: Zephyr (DOB: 11/20/23). Father resides in San Francisco and Mother resides in Singapore with the minor child.
- 3) On 3/6/26, Father filed a Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA).
- 4) On 3/6/26, Father filed a Request for Order seeking child custody and visitation, spousal support, child support, and attorney's fees and costs.
- 5) On 4/21/26, Father filed a Proof of Service of Summons indicating Mother was served with the Summons, Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA), and Request for Order filed 5/6/26 by personal service on 4/1/26.
- 6) On 5/5/26, Mother, specially appearing, filed a Motion to Quash the service of the Summons, Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA),

1 and Request for Order filed 5/6/26. Mother states she was never personally served with any
2 documents in this case at any time.

3 7) On 5/5/26, Mother filed a Memorandum of Points and Authorities stating Father did not
4 effectuate service through the Hague Convention's Central Authority, which is the exclusive
5 method of service permitted in Singapore.

6 8) On 6/3/26, Father filed a Responsive Declaration in opposition to Mother's Motion to Quash.
7 Father asserts Mother was personally served pursuant to the Proof of Service filed 4/21/26.

8 9) On 6/18/26, Mother filed a Reply Declaration reiterating her position that service was
9 noncompliant with the Hague Convention.

10 **B. Findings and Order**

11 1) Failure to effectuate service of process upon a citizen of a country signatory to the Hague Service
12 Convention (Hague Convention) in accordance with the procedures set forth in the Hague
13 Convention renders service void. See Code of Civil Procedure section 413.10(c) and California
14 Rules of Court, rule 5.68(a)(5)(A).

15 2) Singapore is a signatory to the Hague Convention and requires service through the Hague
16 Convention's Central Authority.

17 3) Father's Proof of Personal Service does not comply with his requirement.

18 4) Accordingly, Mother's Motion to Quash the service of the Summons, Petition for Custody and
19 Support of Minor Children (and attached Declaration Under UCCJEA), and Request for Order
20 filed 5/6/26 is GRANTED.

21 5) Counsel for Mother shall prepare the Findings and Order After Hearing

22 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within
27 10 days may allow the other party to prepare a proposed order and submit it to the court in
28 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AARON BLAKE HICKS,

Petitioner

VS.

BRIDGET MARIE LEE,

Respondent

) Case Number: FDI-23-797660

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ENFORCE AGREEMENT PURSUANT TO CCP 664.6; REQUEST FOR
FAMILY CODE SECTION 271 SANCTIONS

TENTATIVE RULING

The parties submitted a stipulated judgment (on 6/22/26) incorporating the global settlement agreement recited on the record at the 1/30/26 Settlement Conference, which the Court reviewed and approved. As such, the Court finds Respondent's Request for Order filed 4/29/26 seeking to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6 is MOOT; therefore, the 6/25/26 hearing is VACATED. **No appearances are required on 6/25/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRIAM GAYLE KANE,

Petitioner

VS.

DAVID WILLIAM KANE,

Respondent

) Case Number: FDI-23-798208

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; JUDGMENT ENFORCEMENT;
SANCTIONS; CASE MANAGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miriam Gayle Kane and Respondent David William Kane.
- 2) On 5/1/26, Petitioner filed a Request for Order seeking (a) enforcement of terms of the parties' 11/6/25 Judgment; (b) \$5,000 in Family Code section 271 sanctions; (c) \$73,488 in attorney's fees and costs for fees currently owed and anticipated fees (including expert fees); and (d) a trial setting date.
- 3) On 5/7/26, Petitioner filed a Proof of Service indicating service of Petitioner's Request for Order and supportive documents was effectuated by electronic service on Respondent's counsel on 5/7/26.
- 4) On 6/2/26, Petitioner filed an Income and Expense Declaration.
- 5) On 6/2/26, Petitioner filed a Proof of Service indicating service of Petitioner's Income and Expense Declaration was effectuated by electronic service on Respondent's counsel on 6/2/26.

- 6) On 6/22/26, Petitioner filed an Update Declaration augmenting the Family section 2030 attorney's fees request from \$73,488 to \$86,827 with attached attorney billing statements.
- 7) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Petitioner's unopposed request for enforcement of terms of the parties' 11/6/25 Judgment is GRANTED. Based on the terms of the 11/6/25 Judgment, the Court finds good cause to issue the following orders:
- 2) Regarding the Auburn Street property (located at 35 Auburn Street, San Francisco), the Court finds that Respondent failed to provide timely proof of any Family Code section 2640 reimbursement claims pursuant to section 2(a)(i) of the Judgment; therefore, no Family Code section 2640 reimbursement claim related to the Auburn Street property will be credited absent further order of the Court.
- 3) The Court confirms that the agreed value of the Auburn Street property for purposes of a buyout is \$1,550,000. See section 2(a)(ii) of the Judgment.
- 4) By 7/9/26, Respondent shall notify Petitioner in writing whether he intends to proceed with a buyout of Petitioner's community property interest in Auburn Street property based on the agreed \$1,550,000 value.
- 5) If Respondent elects to proceed with the buyout, Respondent shall complete the buyout by 9/9/26, unless the parties agree otherwise in writing.
- 6) The Court reserves jurisdiction over the disposition of the Auburn Street property and any related issues.
- 7) If Respondent does not timely elect to proceed with or complete the buyout, Petitioner may file a new Request for Order seeking to compel the sale of the Auburn Street property.
- 8) Regarding retirement accounts, the parties agreed to jointly retain Moon Schwartz and Madden (MSM) to characterize and equalize all retirement accounts. See section 2(b)(i) of the Judgment.
- 9) Respondent shall supply all preliminary information and documents requested by MSM by 7/2/26. Respondent shall pay his 50% share of MSM's estimated cost and supply any additional information and documents requested by MSM within 7 days of MSM's request.

1 10) The Court reserves jurisdiction to issue additional orders to ensure completion of the equalization
2 or retirements accounts and to impose sanctions in the event Respondent fails to comply.

3 11) Regarding retrieval of personal property, the parties shall coordinate a date certain for the transfer
4 of Petitioner's personal property consistent with the Judgment. The parties shall meet and confer
5 regarding and deadline and delivery of the items as the terms of the Judgment require Respondent
6 to deliver the items to a storage site in either San Francisco or San Mateo. See section 3(a). The
7 parties are encouraged to work cooperatively together to make the transfer of property as
8 seamless for both sides as possible.

9 12) Petitioner's request for \$86,827 in Family Code section 2030 attorney's fees is DENIED.

10 13) Either party may file an At Issue Memorandum to request a Status Conference at which time a
11 trial date can be requested if it is determined that the parties are ready for trial on the remaining
12 issues.

13 14) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

14 15) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELLE DOBSON COOPER,

Petitioner

VS.

ADAM COOPER,

Respondent

) Case Number: FDI-24-799962

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: TERMINATION OF SPOUSAL SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Danielle Dobson Cooper and Respondent Adam Cooper.
- 2) On 2/3/26, the parties filed Stipulation and Order Concerning Temporary Spousal Support and Child Support. The stipulation provides for: (a) base monthly temporary spousal support and base monthly guideline child support effective 9/1/25 pursuant to an XSpouse report attached; (b) reservation of jurisdiction over base monthly support and bonus income owed for the period on 6/6/25 – 8/31/25 for the purpose of the parties’ annual true up; (c) Smith/Ostler bonus support; (d) annual true ups to occur annually on 10/31; and (e) child support add-ons.
- 3) On 4/30/26, Petitioner filed a Request for Order seeking termination of temporary spousal support as set forth in the support stipulation filed 2/3/26 with an order confirming the final spousal support true-up will include the period of 6/6/25 – 4/30/26. Petitioner asserts that as of 4/30/26 she will have paid Respondent temporary spousal support over half the length of the 20-month marriage.
- 4) On 4/30/26, Petitioner filed a Memorandum of Points and Authorities.

- 5) On 6/9/26, Respondent filed a Responsive Declaration in agreement to termination of spousal support; however, Respondent requests the Court order Petitioner to pay \$10,018.50 in reserved base temporary spousal support for the period of 6/6/25 – 8/31/25. Respondent seeks \$9,175 in Family Code section 271 sanctions.
- 6) On 6/9/26, Respondent filed a Memorandum of Points and Authorities.
- 7) On 6/9/26, Respondent filed a declaration of counsel in support of Respondent's request for Family Code section 271 sanctions.
- 8) On 6/9/26, Respondent filed an Income and Expense Declaration.
- 9) On 6/17/26, Petitioner filed a Reply Declaration reiterating her position and opposing Respondent's requests. Petitioner seeks \$14,595 in Family Code section 271 sanctions.
- 10) On 6/17/26, Petitioner filed a Memorandum of Points and Authorities.
- 11) On 6/18/26, Respondent filed Respondent's Surreply and Objection to Petitioner's Reply.

B. Findings and Order

- 1) The Court's jurisdiction to award spousal support to either party is hereby terminated by agreement of the parties effective 4/30/26 EXCEPT for the period of 6/6/25 - 4/30/26 as governed by the terms of the support stipulation filed 2/3/26.
- 2) The Court agrees with Petitioner that the support stipulation filed 2/3/26 explicitly reserves jurisdiction over base monthly support and bonus income owed for the period on 6/6/25 – 8/31/25 for the purpose of the parties' annual true up to occur on 10/31/26 for the period of 6/6/25 – 12/31/25.
- 3) The Court therefore declines to award Respondent \$10,018.50 in reserved base temporary spousal support for the period of 6/6/25 – 8/31/25 at this time.
- 4) The final true-up for spousal support shall include the period of 6/6/25 – 4/30/26 and shall occur on 10/31/26.
- 5) The prior agreement (set forth in support stipulation filed 2/3/26) regarding true ups for child support remains in full force and effect.
- 6) Respondent's request for \$9,175 in Family Code section 271 sanctions is DENIED.
- 7) Petitioner's request for \$14,595 in Family Code section 271 sanctions is DENIED.
- 8) The parties are encouraged to continue to work together to achieve a global settlement.

1 9) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

2 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
3 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
4 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
5 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
6 proposed order after hearing directly to the court. Failure to submit the order after hearing within
7 10 days may allow the other party to prepare a proposed order and submit it to the court in
8 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTINA MARIE CZAP,

Petitioner

VS.

FELIPE SAINT-JEAN ANTONIJEVIC,

Respondent

) Case Number: FDI-25-801014

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Marie Czap and Respondent Felipe Saint-Jean Antonijevic.
- 2) On 4/16/26, Petitioner filed a Request for Order seeking modification of the 4/2/26 spousal support order based on a change in income, determination of spousal support arrears, and \$75,000 in attorney's fees and costs pursuant to Family Code section 2030. The matter was set for hearing on 6/9/26.
- 3) On 5/14/26, the parties filed an Agreement and Order to Reschedule Hearing and the matter was continued to 6/25/26.
- 4) On 6/10/26, Petitioner filed a Supplemental Declaration in support of Petitioner's Request for Order augmenting the attorney's fees request to \$129,550.
- 5) On 6/11/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order.

- 6) On 6/11/26, Respondent filed an Income and Expense Declaration.
- 7) On 6/11/26, Respondent filed a Statement of Support Calculations.
- 8) On 6/17/26, Petitioner filed a declaration of Jessica Lordan, CPA.
- 9) On 6/17/26, Petitioner filed an Income and Expense Declaration.
- 10) On 6/17/26, Petitioner filed Petitioner's Witness List, which indicates Petitioner's intent to call Jessica Lordan, CPA at the 6/25/26 hearing.
- 11) On 6/17/26, Petitioner filed a Statement of Support Calculations.
- 12) On 6/22/26, Respondent filed Respondent's Request for Evidentiary Hearing, which indicates Respondent's intent to cross-examine Petitioner and her expert as well as testify and present expert testimony.

B. Findings and Order

- 1) The Court finds good cause to GRANT Respondent's request for an evidentiary hearing pursuant to Family Code section 217.
- 2) **The parties are ordered to appear** and shall be prepared to: (a) discuss their time estimate for trial; and (b) inform the Court of the proposed number of witnesses they intend to present.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TRACI PLAUT,

Petitioner

VS.

ZACHARY PLAUT,

Respondent

) Case Number: FDI-25-801768

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR PARTNER SUPPORT, CHILD
SUPPORT, PROPERTY CONTROL, I REQUEST THAT OUR CHILD PRIMARILY RESIDE WITH
ME IN SAN FRANCISCO WHERE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Traci Plaut (Mother) and Respondent Zachary Plaut (Father). They share one minor child: Zarah Marie Plaut (DOB: 07/12/12).
- 2) On March 30, 2026, Mother filed an ex parte Request for Order seeking pendente lite orders regarding child custody, visitation, guideline spousal support, guideline child support, property control of the 2632 26th Avenue, San Francisco home, and the minor child's residence (the minor child be permitted to reside with her in San Francisco). Mother concurrently filed an Income and Expense Declaration (file dated March 27, 2026). The Court denied Mother's request for emergency relief and set the matter for hearing on May 4, 2026 (on the Court's Readiness calendar).

- 3) On April 24, 2026, Father filed a Responsive Declaration wherein he asks this Court to order a child custody evaluation and equal parenting plan. Father does not oppose Mother's requests for support and property control; however, Father requests Mother be ordered to pay all her own expenses as well as the mortgage and carrying costs on the property. Father states he is currently paying all expenses. Father asks the Court to impute Mother at her previous salary as a researcher at UCSF or minimum wage. Father concurrently filed an Income and Expense Declaration (file dated April 24, 2026).
- 4) On April 29, 2026, Father filed "Respondent's Evidentiary Objections to Petitioner's Declaration and Documents in Support of Her Request for Order and Additional Documents," which has been read and considered by the Court.
- 5) On June 17, 2026, Father filed a "Respondent's Supplemental Responsive Declaration to Petitioner's Request for Order," which has been read and considered by the Court. Father attached a proposed XSpouse report to this pleading.

B. Findings and Order

- 1) As a preliminary matter, all objections contained in Father's April 29, 2026 pleading entitled "Respondent's Evidentiary Objections to Petitioner's Declaration and Documents in Support of Her Request for Order and Additional Documents" are OVERRULED.
- 2) Custody and Visitation: This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 3) Mother shall continue to have sole legal and sole physical custody of the minor child.
- 4) Father shall have visitation with the minor child on the 1st, 3rd and 5th weekends of each month from Saturday at 10:00 a.m. – 6:00 p.m., and on Sundays from 10:00 a.m. – 6:00 p.m.
- 5) In addition, Father may have a weekly dinner visit with the minor child from after school until 7:30 p.m. on Wednesdays each week. If the minor child is not in school, then Father's Wednesday visits shall commence at 3:30 p.m.
- 6) Father shall provide all the transportation for visits.

- 1 7) Father's request for a Family Code section 3111 evaluation is GRANTED. The protocol for
2 selecting the evaluator shall be as follows:
- 3 a. Father shall select the names of three qualified professionals to conduct the evaluation.
4 He shall send his list of professionals to Mother, no later than close of business on July 6,
5 2026.
- 6 b. Mother shall then select the one person from Father's list whom she would like to
7 perform the evaluation. Mother shall make her selection, no later than close of business
8 on July 13, 2026.
- 9 c. Both parties shall promptly cooperate in filling out any required intake forms and
10 commence the process as soon as the selected professional is ready to commence the
11 process.
- 12 d. Father shall pay the costs, subject to later reallocation by the Court, if Father chooses to
13 seek a contribution from Mother. Court will reserve jurisdiction over the reallocation of
14 costs issue.
- 15 8) A review hearing shall be held on **August 20, 2026, in Department 403 at 9:00 a.m.** to review
16 the status of the Family Code section 3111 evaluation.
- 17 9) Financial Matters: Mother's request for guideline monthly child support and temporary monthly
18 spousal support is GRANTED.
- 19 10) Father's request for imputation of income to Mother is DENIED without prejudice as is
20 undisputed that Mother was laid off from her job in 2024. However, Mother is warned that the
21 Court will consider imputation of income if she remains unemployed for an unreasonable length
22 of time (i.e., an additional 6-9 months).
- 23 11) In accordance with the XSpouse report attached hereto and incorporated herein, Father shall pay
24 Mother \$4,384 in guideline monthly child support and \$9,030 in temporary monthly spousal
25 support for a total monthly support payment of \$13,414. Father shall make monthly support
26 payments on the 1st of every month commencing July 1, 2026.
- 27 12) The XSpouse inputs are based on Father's support calculation attached to his June 17, 2026
28 Supplemental Declaration adjusted to reflect Mother's income as \$0.
29

1 13) The Court reserves jurisdiction to calculate child support and spousal support retroactive to the
2 filing date of the petition, including any arrears Father may owe Mother or reimbursements
3 Father may be owed for payment of voluntary support.

4 14) The parties shall share the following child support add-on expenses going forward with Father
5 responsible for 52% of costs and Mother responsible for 48% of costs: childcare costs related to
6 employment or to reasonably necessary education or training for employment skills, reasonable
7 uninsured healthcare costs for the child, private school tuition if applicable, and the reasonable
8 costs associated with mutually agreed upon extracurricular activities (neither party shall
9 unreasonably withhold consent for a child to participate in an activity). The procedure to make or
10 pay a reimbursement claim for these child support add-ons shall be as set forth in Judicial Council
11 Form FL-192.

12 15) Mother's unopposed request for exclusive use, possession, and control of the 2632 26th Avenue,
13 San Francisco home is GRANTED. Mother shall be solely responsible for all bills associated
14 with the home, including, but not limited to, the mortgage and carrying costs.

15 16) Counsel for Father shall prepare the Findings and Order After Hearing, which shall include as
16 attachments forms FL-342 and FL-192.

17 17) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
18 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
19 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
20 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
21 proposed order after hearing directly to the court. Failure to submit the order after hearing within
22 10 days may allow the other party to prepare a proposed order and submit it to the court in
23 accordance with CA Rules of Court, Rule 5.125(d).

24
25
26
27
28
29

2026

Fixed Shares

	Father	Mother
Number of children	0	1
Percent time with NCP Filing status	20.00% MFJIN	0.00% MFJIN
Number of exemptions	1	2
Wages and salary	38000	0
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	963	2341
Ded interest expense	1030	4473
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures

2026

GUIDELINE

Nets (adjusted)

Father	28054
Mother	0
Total	28054
Addons	0
Guideln CS	4384
S.Clara SS	9030
Total	13414

Support

Proposed Tactic 9

CS	4384
SS	9030
Total	13414
Saving	0
Releases	0

Monthly Figures

Cash Flow

Guideline Proposed

Combined net spendable	28054	28054
Percent change	0%	0%
Father		
Payment cost/benefit	-13414	-13414
Net spendable income	14641	14641
Change from guideline	0	0
% of combined spendable	52%	52%
% of saving over guideline	0%	0%
Total taxes	9946	9946
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	25095	25095
Mother		
Payment cost/benefit	13414	13414
Net spendable income	13414	13414
Change from guideline	0	0
% of combined spendable	48%	48%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	20 - 80	0	0	0 Father	4,384 Father	4,384 Father
0000-00-00	20 - 80	0	0	0 Father	4,384 Father	4,384 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUNJUN LUO,

Petitioner

VS.

ZHENG CHIU CHAN,

Respondent

) Case Number: FDI-26-802522

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Junjun Luo and Respondent Zheng Chiu Chan.
- 2) On 1/29/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.
- 3) On 1/29/26, Petitioner filed a Request for Order seeking orders for spousal support and attorney fees. Petitioner requests \$2,500 per month in pendente lite spousal support and \$10,000 in attorney fees.
- 4) On 1/29/2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married filing jointly; 2 exemptions
 - b. Other Party's Income: Blank
 - c. Average Monthly Income: (Unemployed since 3/11/19 – Alleges housewife entirety of marriage.)
 - d. Cash and checking accounts: Blank

1 e. Total Expenses: \$4,500.00/month (Proposed Needs)

2 f. Attorney Fees Paid: \$6,500.00/month.

3 5) On 3/3/26, Respondent filed a Response and Request for Nullity indicating the date of marriage is
4 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.

5 6) On 3/3/26, Respondent filed an Income and Expense Declaration, which includes the following
6 information:

7 a. Filing Status: Married filing jointly; 2 exemptions

8 b. Other Party's Income: \$0.00

9 c. Average Monthly Income: \$4200.00/month.

10 d. Cash and checking accounts: \$200.00

11 e. Total Expenses: Blank

12 f. Attorney Fees Paid: Blank

13 7) Respondent did not file a Responsive Declaration.

14 8) At the prior 4/21/26 hearing, the Court ordered, in pertinent part, as follows:

15 a. Petitioner's request for Family Code section 2030 attorney's fees is DENIED.

16 Respondent does not have the ability to pay any of Petitioner's attorney's fees. There
17 does not exist a disparity in access to funds. Respondent's Income and Expense
18 Declarations filed 3/3/26 indicates he has \$200 in "cash and checking accounts," while
19 Petitioner left blank the "cash and checking" section. Accordingly, each party shall bear
20 their own attorney fees and costs.

21 b. The Court GRANTS Petitioner's request for temporary spousal support. In accordance
22 with the XSpouse report attached hereto and incorporated herein, Respondent is obligated
23 to pay Petitioner temporary spousal support in the amount of \$1,465 per month, effective
24 2/1/26.

25 c. Respondent owes Petitioner \$4,395 in temporary spousal support arrears for the period of
26 2/1/26 – 4/30/26. Respondent shall pay Petitioner an additional \$250 per month until this
27 balance is paid in full.

28 d. Commencing 5/1/26, all payments set forth above shall be made by the 1st of every
29 month.

- 1 e. The Court reserves jurisdiction over the issues of temporary spousal support and Family
2 Code section 2030 attorney's fees.
- 3 f. The Court continues the matter to 6/9/26 at 9 AM in Dept. 403.
- 4 g. Respondent shall provide Petitioner's counsel with pay stubs from 2026 by 5/5/26.
- 5 9) On 5/28/26, Respondent refiled a Response and Request for Nullity.
- 6 10) On 5/28/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
7 Order. Respondent requests the Court grant a nullity on the basis of fraud. Respondent believes
8 that Petitioner entered the marriage for reasons other than forming a genuine marital relationship
9 (i.e., immigration status and financial gain). Respondent asserts that spousal support is not
10 justified under these circumstances and asserts that Petitioner is self-supporting.
- 11 11) At the prior 6/9/26 hearing, both parties appeared; Petitioner was represented by counsel and
12 Respondent appeared in pro per. The Court continued the matter to 6/25/26 for the final time to
13 permit Respondent to submit his paystubs to counsel for Petitioner.
- 14 12) On 6/12/26, Petitioner filed an update declaration confirming receipt of Respondent's paystubs.
15 Petitioner requests the Court recalculate temporary spousal support effective 2/1/26 using \$4,716
16 as Respondent's monthly income (instead of \$4,200). Petitioner attached Respondent's paystubs.

17 **B. Findings and Order**

- 18 1) Petitioner's request for modification of temporary spousal support to accurately reflect
19 Respondent's income is GRANTED as the Court reserved jurisdiction over temporary spousal
20 support for Respondent to provide copies of his paystubs.
- 21 2) Effective 2/1/26, and in accordance with the XSpouse report attached hereto and incorporated
22 herein, Respondent shall pay Petitioner temporary spousal support in the amount of \$1,629 per
23 month.
- 24 3) This means that Respondent owes Petitioner a total of \$4,887 in temporary spousal support
25 arrears for the period of 2/1/26 – 4/30/26. Respondent shall pay Petitioner an additional \$250 per
26 month until this balance is paid in full; Respondent shall be credited for any payments towards
27 arrears he made between the 4/21/26 hearing and present.
- 28 4) Commencing 7/1/26, all payments set forth above shall be made by the 1st of every month.
- 29

- 1 5) In so far as Respondent seeks to annul the marriage, such request is not properly before the Court;
2 Respondent may file a new Request for Order.
- 3 6) Respondent is encouraged to seek assistance from the ACCESS Center. Information for
4 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
5 center.
- 6 7) The Court will prepare the Findings and Order After Hearing.

2026

Fixed Shares

	Husband	Wife
Number of children Percent time with NCP Filing status	0.00% MFJIN	0.00% MFJIN
Number of exemptions	1	1
Wages and salary	4716	0
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE

Nets (adjusted)

Husband	4071
Wife	0
Total	4071
Addons	0
Guideln CS	0
S.Clara SS	1629
Total	1629

Support

Settings changed

Proposed

Tactic 9

CS	0
SS	1629
Total	1629
Saving	0
Releases	0

Monthly Figures

Cash Flow

Guideline Proposed

Combined net spendable	4071	4071
Percent change	0%	0%
Husband		
Payment cost/benefit	-1629	-1629
Net spendable income	2443	2443
Change from guideline	0	0
% of combined spendable	60%	60%
% of saving over guideline	0%	0%
Total taxes	645	645
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	3889	3889
Wife		
Payment cost/benefit	1629	1629
Net spendable income	1629	1629
Change from guideline	0	0
% of combined spendable	40%	40%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARGUERITE BACON BRADLEY,	)	Case Number: FDV-25-818369
Petitioner	)	Hearing Date: June 25, 2026
VS.	)	Hearing Time: 9:00 AM
JORGE VARGAS GONZALEZ,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE RE: CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.